

		This case is STAYED pending completion of the ordered arbitration pursuant to Code of Civil Procedure section 1281.4. An ADR review hearing is scheduled for June, 3 2027 at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing. Defendants shall give notice of this ruling.
106	Doe vs. AN SCPB, LLC 2025-01454918	1. Motion to Compel Arbitration 2. Case Management Conference Defendants AN SCPB, LLC and Elizabeth An’s Motion to Strike Plaintiff’s Class Action Allegations, to Compel Arbitration of Plaintiff’s PAGA Individual Claim, and Stay the PAGA Representative Action Pending Arbitration is DENIED. As an initial matter, the Court notes that Defendants do not move to compel arbitration of any of Plaintiff John Doe’s claims alleged in the third amended complaint (TAC) other than his individual PAGA claim in the 17th cause of action. Presumably, Defendants do not move to compel arbitration of the other 16 causes of action in the TAC because Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”) provides, in relevant part, that “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402, subd. (a).) California caselaw is clear that “[t]he statute’s plain language makes clear that the exemption applies to the <i>case</i>, not individual claims, where a plaintiff alleges conduct constituting sexual harassment or sexual assault,” and thus, “it is no surprise that every published California decision to address this issue has concluded that, once properly invoked, the EFAA renders an arbitration agreement unenforceable as to the entire case, not merely the sexual harassment claim.” (<i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 17 Cal.App.5th 75, 88-89, citing <i>Casey v. Super. Ct.</i> (2025) 108 Cal.App.5th 575, 588, <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791, 796; and <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 577 [“<i>Second Street</i>”].) Defendants do not explain why Plaintiff’s individual PAGA claim should be treated differently than his other individual claims alleged in the other 16 cause of action—i.e., why Plaintiff’s individual PAGA claim is not also part of the same “case” that “relates to . . . the sexual harassment dispute” such that the EFAA applies to render the parties’ alleged arbitration agreement and representative action waiver unenforceable. When a

plaintiff's claims "stem from the same employment relationship and his treatment by defendants, his claims 'relates to' his sexual harassment allegations within the meaning of section 402(a) of the EFAA." (*Quilala, supra*, 117 Cal.App.5th at p. 90; see also *Johnson v. Everyrealm, Inc.* (2023) 657 F.Supp.3d 535, 562, fn. 23 [nor is this a situation "under which claim(s) far afield might be found to have been improperly joined with a claim within the EFAA so as to enable them to elude a binding arbitration agreement," as "[plaintiff's] claims against [defendant] and its executives all arise from his employment at [defendant] and are clearly properly joined in a common lawsuit"].)

Here, Plaintiff's individual PAGA claim stems or arises from the same employment by Defendants. Therefore, they are no different than his other individual claims alleged in the other 16 causes of action of the TAC, which Defendants appear to concede cannot be arbitrated in light of the EFAA, as Defendants do not move to compel those claims to arbitration. Therefore, the Court **DENIES** Defendants' motion to compel arbitration of Plaintiff's individual PAGA claim in light of the EFAA.

Accordingly, the Court also **DENIES** Defendants' request to stay the remaining action—which includes *all* of Plaintiff's individual claims under all 17 causes of action alleged in the TAC—pending arbitration as there is no pending arbitration.

Defendants also move to strike the class allegations of the TAC. There are several problems with Defendants' motion.

First, as Plaintiff points out, California Rules of Court (CRC), rule 3.1322 requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." Defendants' notice of motion fails to comply with this requirement. Nor do Defendants specify the portions sought to be stricken in their supporting memorandum of points and authorities.

Second, even if the Court were to excuse this procedural deficiency and interpret Defendants' motion as seeking to strike every reference to Plaintiff seeking to bring claims on behalf of a "class," only "where the invalidity of the class allegations is revealed on the face of the complaint, and/or by matters subject to judicial notice, [may] the class issue . . . be properly disposed of by demurrer or motion to strike." (*Canon U.S.A., Inc. v. Super. Ct.* (1998) 68 Cal.App.4th 1, 5; see also *Shaw v. Los Angeles Unified School Dist.* (2023) 95 Cal.App.5th 740, 760 ["[c]lass allegations may be stricken at the pleading stage only when it is clear from the face of the complaint, the exhibits, and judicially noticed documents" that class claims are invalid].)

Here, in support of their motion to strike, Defendants rely only on the parties' agreed-upon class waiver, which Defendants contend "renders the class action claims in the Complaint fatally defective." However, Plaintiff's complaint mentions nothing about this agreement. Nor is this agreement subject to judicial notice. Therefore, Defendants seek to rely on

		facts extrinsic to the complaint to strike the class allegations of the TAC. This is improper. Nor can Defendants bypass this basic requirement for a motion to strike by combining it with a motion to compel arbitration. Code of Civil Procedure section 1281.2 as well as CRC, rule 3.1330 apply only to agreements “<i>to arbitrate a controversy</i>,” not to an agreement to waive class claims. (CCP, § 1281.2, emphasis added.) As explained above, the EFAA applies here to prohibit the enforceability of the parties’ predispute agreement <i>to arbitrate</i> any individual claims in Plaintiff’s case. To the extent Defendants also move to enforce the parties’ agreement <i>to waive class claims</i>, such motion is purely a motion to strike class allegations, and the requirements for a motion to strike class allegations govern this part of Defendants motion. Defendants have failed to demonstrate that they satisfy the requirements for a motion to strike class allegations, which must be based on invalidity of the class allegations revealed on the face of the complaint. Accordingly, the Court also DENIES Defendants’ motion to strike the class allegations of the TAC. Plaintiff shall give notice.
108	De La Rosa vs. PLAN888 Inc 2025-01495101	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Production Plaintiff Vanessa De La Rosa’s (1) Motion to Compel Defendant Plan888 Inc. dba Plan B’s Responses to Special Interrogatories, Set One, and Request for Sanctions ; and (2) Motion to Compel Defendant Plan888 Inc. dba Plan B’s Responses to Demand for Production of Documents, Set One, and Request for Sanctions are GRANTED. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendant is ORDERED to serve verified, non-evasive responses without objection to Plaintiff’s 1st set of special interrogatories demands for production within 14 days of notice. To be clear, any response to the demands for production shall include the production of all responsive documents. Sanctions in the total amount of \$3,900 (or \$1,950 per motion) are GRANTED in favor of Plaintiff and against Defendant, payable to Plaintiff’s counsel within 30 days of notice. Moving party shall give notice of all of the above.